

STATE OF NEW YORK
SUPREME COURT COUNTY OF KINGS

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TUNISIA SHEARIN, individually and
as Parent and Natural Guardian of
YASIN SHEARIN,

**AMENDED
COMPLAINT**

Index No.: 510035/2015

Plaintiffs,

- against -

**THE CITY OF NEW YORK, DET.
DAVID CENTENO and SGT. MICHAEL
FALK** in their individual and official capacities
as Police Officers employed by the City of
New York,

Defendants.

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Plaintiffs, by their attorney, ANDREW F. PLASSE & ASSOCIATES, LLC, as
and for their Complaint, hereby alleges and shows to the Court the following, all upon
information and belief:

1. At all times hereinafter mentioned, the Plaintiff Tunisia Shearin is an individual and resides at 45 Gloria Court, Staten Island, NY.
2. At all times hereinafter mentioned, the infant Plaintiff Yasin Shearin [Date of Birth: January 9, 1998] is an individual and resides at 45 Gloria Court, Staten Island, NY.
3. Upon information and belief, and at all times hereinafter mentioned, defendant City of New York, was and now is, a municipal corporation, existing under and incorporated under the laws of the State of New York, with its principal place of business located at the Municipal Building, One Centre Street, New York, NY 10007.
4. That heretofore the Plaintiff Tunisia Shearin caused a Notice of Claim, in writing, sworn to by and on behalf of herself, to be duly served upon the defendant City

of New York by delivering a copy thereof to the Office of the Corporation Counsel of the City of New York, which said Notice of Claim set forth the name and post office address of the said claimant, the nature of the claim, the time when, the place where and the manner in which said claim arose and the items of damages or injuries claimed to have been sustained so far as then practicable; that Tunisia Shearin appeared at a 50-h hearing on April 22, 2015; that at least ninety [90] days have elapsed since the service of said Notice of Claim and payment thereof has been refused; and that this action is being commenced within one year and ninety days after the occurrence of the event upon which this claim is based.

5. That heretofore the infant Plaintiff Yasin Shearin caused a Notice of Claim, in writing, sworn to by and on behalf of herself, to be duly served upon the defendant City of New York by delivering a copy thereof to the Office of the Corporation Counsel of the City of New York, which said Notice of Claim set forth the name and post office address of the said claimant, the nature of the claim, the time when, the place where and the manner in which said claim arose and the items of damages or injuries claimed to have been sustained so far as then practicable; that the Plaintiff Yasin Shearin appeared at a 50-h hearing on April 22, 2015; that at least ninety [90] days have elapsed since the service of said Notice of Claim and payment thereof has been refused; and that this action is being commenced within one year and ninety days after the occurrence of the event upon which this claim is based.

6. That upon information and belief, the City of New York owned, operated, controlled and maintained the New York City Police Department by charter, or by law, under the provisions of the State and/or City of New York.

7. Upon information and belief, and at all times hereinafter mentioned, defendants Detective David Centeno and Sgt. Michael Falk were and now are New York City Police Officers, who were employed with the New York City Police Department on the date of this incident.

8. At the time of the alleged incident and at all times pertinent hereto, the defendants Detective David Centeno and Sgt. Michael Falk acted under color of State Law or a statute, ordinance, regulation or custom.

STATEMENT OF FACTS

9. Plaintiff Yasin Shearin, at the time of the incident, was sixteen year old, in 10th Grade and attending Concord High School.

10. On December 23, 2014, at approximately 6:00 p.m., plaintiff Yasin Shearin voluntarily appeared at the 73rd Precinct to Detective David Centeno and Sgt. Michael Falk to answer questions.

11. Detective David Centeno, Sgt. Michael Falk and other employees of the City of New York arrested Yasin Shearin for using his First Amendment right to post on Facebook "Let's Kill the Cops" with an emoji of a Police Officer and a gun.

12. That the arrest of Yasin Shearin was covered by the media, including cable TV, local TV, the internet and other news sources, his likeness was published and re-published repeatedly in multiple media outlets and on the internet.

13. Yasin Shearin was arraigned, bail was set at \$50,000.00 and he was held in Rikers Island.

14. On or about December 29, 2014, a Kings County Grand Jury declined to indict the infant plaintiff.

15. Yasin Shearin was released on December 30, 2014 from Rikers Island in the middle of the early morning, without proper clothing.

16. The Plaintiff Yasin Shearin was shamed and humiliated in the media, by TV Stations, newspapers, Facebook, other online articles, and sustained severe emotional distress as a result of his false arrest, public humiliation, embarrassment, mental anguish and severe personal injuries, was unable to complete his school, sustained severe emotional trauma resulting in treatment, and was otherwise damaged.

17. The plaintiff, Tunisia Shearin, was also caused to suffer extreme humiliation, mental anguish as she was told at work that a dozen police cars were at her home, that her baby sitter and four minor children were being held in her home at gunpoint, and her home was being searched, further humiliation as her son was publicly shamed and humiliated, forced to spend money on legal fees, lost time from work due to handling this matter for her sixteen year old son, and sustained a loss of earnings, and other economic damages..

PLAINTIFFS' CLAIM

18. Upon information and belief, the New York City Police Officers involved herein, acted with actual malice toward the plaintiffs and with willful and wanton indifference and deliberate disregard for the statutory and constitutional rights of the plaintiffs.

19. Upon information and belief, the actions taken as aforesaid by the unknown Police Officers constituted a violation of the First Amendment rights to free speech,

excessive force, an unreasonable search and seizure in violation of the Fourth Amendment, denial of prompt medical treatment, and a deprivation of liberty without due process of law.

20. Upon information and belief, the conduct of the Police Officers violated the First, Fourth, Fifth, Eighth and Fourteenth Amendments of the United States Constitution.

AS AND FOR A FIRST CAUSE OF ACTION on behalf of YASIN SHEARIN AGAINST DEFENDANTS DET. DAVID CENTENO and SGT. MICHAEL FALK JOINTLY AND SEVERALLY, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-20" AND FURTHER ALLEGES AS FOLLOWS:

21. Upon information and belief, the actions taken as aforesaid by Defendants Detective David Centeno and Sgt. Michael Falk were unconscionable and an unreasonable search and seizure in violation of the First Amendment, an unreasonable search and seizure in violation of the Fourth Amendment and a deprivation of liberty without due process of law under the Fifth and Fourteenth Amendments.

22. Upon information and belief, Defendants Detective David Centeno and Sgt. Michael Falk acted with actual malice toward the Plaintiff and with willful and wanton indifference and deliberate disregard for the statutory and constitutional rights of the plaintiff.

23. Solely by reason of the above, the plaintiff sustained severe personal injuries, was rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will

necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; plaintiff has lost time from school, and plaintiff has been and continues to be unable to pursue the usual duties with the same degree of efficiency as prior to this accident, all to plaintiff's great damage.

24. That by virtue of the foregoing, Plaintiff has been damaged in the amount of TEN MILLION [\$10,000,000.00] DOLLARS.

AS AND FOR A FIRST CAUSE OF ACTION on behalf of YASIN SHEARIN AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-20" AND FURTHER ALLEGES AS FOLLOWS:

25. That the employees of the defendant as aforesaid jointly and severally falsely arrested the plaintiff causing him to sustain severe personal injuries.

26. That by reason of the foregoing, the infant plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION on behalf of YASIN SHEARIN AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-20" AND FURTHER ALLEGES AS FOLLOWS:

27. That the employees of the defendant as aforesaid jointly and severally falsely imprisoned the infant plaintiff causing her to sustain severe personal injuries.

28. That by reason of the foregoing, the infant plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION on behalf of YASIN SHEARIN AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF RESTATES AND

**REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN
PARAGRPAHS MARKED AND ENUMERATED "1-20"AND FURTHER
ALLEGES AS FOLLOWS:**

29. That the employees of the defendant as aforesaid jointly and severally maliciously prosecuted the infant plaintiff causing her to sustain severe personal injuries.

30. That by reason of the foregoing, the infant plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION on behalf of YASIN SHEARIN
AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF RESTATES AND
REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN
PARAGRPAHS MARKED AND ENUMERATED "1-20"AND FURTHER
ALLEGES AS FOLLOWS:**

31. Upon information and belief, the actions taken as aforesaid by Police Officers of the City of New York, constituted a violation of the First Amendment and was an unreasonable search and seizure and deprivation of liberty without due process of law.

32. Upon information and belief, at all times pertinent hereto, New York City permitted and tolerated a pattern and practice of violating First Amendment rights of individual and conducted unreasonable search and seizures, stop and frisks, denial of prompt medical treatment, and deprivations of liberty without due process of law by Police Officers of the City of New York.

33. Upon information and belief, the City of New York has maintained a system of review of this police conduct which is so untimely and cursory as to be ineffective and which permits and tolerates the unreasonable stop and frisks, search and seizures and deprivations of liberty without due process of law by Police Officers.

34. At all times pertinent hereto, Police Officers of the City of New York were acting within the scope of their employment and pursuant to the aforementioned policies and practices of the City of New York. These policies and practices which were enforced by Defendant City of New York were the moving force, proximate cause, or the affirmative link behind the conduct causing the arrest of the infant plaintiff and the infant plaintiff's subsequent injuries.

35. The City of New York is therefore liable for the violations of the infant Plaintiff's constitutional rights by Defendant's Police Officers.

36. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FIRST CAUSE OF ACTION on behalf of TUNISIA SHEARIN AGAINST DEFENDANTS DET. DAVID CENTENO and SGT. MICHAEL FALK, JOINTLY AND SEVERALLY, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-20" AND FURTHER ALLEGES AS FOLLOWS:

37. Upon information and belief, the actions taken as aforesaid by Defendants Detective David Centeno and Sgt. Michael Falk were a Violation of the First Amendment rights for free speech and constituted an unreasonable search and seizure in violation of the Fourth Amendment and a deprivation of liberty without due process of law under the Fifth and Fourteenth Amendments.

38. Upon information and belief, Defendants Detective David Centeno and Sgt. Michael Falk acted with actual malice toward the Plaintiff and with willful and wanton indifference and deliberate disregard for the statutory and constitutional rights of the plaintiff.

39. Solely by reason of the above, the plaintiff sustained severe personal injuries, was rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has been and continues to be unable to pursue the usual duties with the same degree of efficiency as prior to this accident, all to plaintiff's great damage.

40. That by virtue of the foregoing, Plaintiff has been damaged in the amount of TEN MILLION [\$10,000,000.00] DOLLARS.

AS AND FOR A FIRST CAUSE OF ACTION on behalf of TUNISIA SHEARIN, AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-20" AND FURTHER ALLEGES AS FOLLOWS:

41. That the employees of the defendant as aforesaid intentionally inflicted emotional distress upon the plaintiff Tunisia Shearin causing her to sustain severe personal injuries.

42. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION on behalf of TUNISIA SHEARIN, AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-20" AND FURTHER ALLEGES AS FOLLOWS:

43. That as a result of the foregoing, plaintiff Tunisia Shearin was forced to incur expenses related to her son.

44. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION on behalf of TUNISIA SHEARIN
AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF RESTATES AND
REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN
PARAGRAPHS MARKED AND ENUMERATED "1-20" AND FURTHER
ALLEGES AS FOLLOWS:**

45. Upon information and belief, the actions taken as aforesaid by Police Officers of the City of New York, constituted an unreasonable search and seizure and deprivation of liberty without due process of law.

46. Upon information and belief, at all times pertinent hereto, New York City permitted and tolerated a pattern and practice of unreasonable search and seizures, stop and frisks, denial of prompt medical treatment, and deprivations of liberty without due process of law by Police Officers of the City of New York.

47. Upon information and belief, the City of New York has maintained a system of review of this police conduct which is so untimely and cursory as to be ineffective and which permits and tolerates the unreasonable stop and frisks, search and seizures and deprivations of liberty without due process of law by Police Officers.

48. At all times pertinent hereto, Police Officers of the City of New York were acting within the scope of their employment and pursuant to the aforementioned policies and practices of the City of New York. These policies and practices which were enforced by Defendant City of New York were the moving force, proximate cause, or the

affirmative link behind the conduct causing the illegal search and seizure of plaintiff Tunisia Shearin's home and her subsequent injuries.

49. The City of New York is therefore liable for the violations of Plaintiff Tunisia Shearin's constitutional rights by Defendant's Police Officers.

50. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiffs demand Judgment as follows:

I. Judgment on the First Cause of Action on behalf of Yasin Shearin against the Defendants Det. David Centeno and Sgt. Michael Falk, in the amount of TEN MILLION (\$10,000,000.00) DOLLARS;

II. Judgment on the First Cause of Action on behalf of Yasin Shearin against the City of New York, in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

III. Judgment on the Second Cause of Action on behalf of Yasin Shearin against the City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

IV. Judgment on the Third Cause of Action on behalf of Yasin Shearin against the City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

V. Judgment on the Fourth Cause of Action on behalf of Yasin Shearin against the City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

VI. Judgment on the First Cause of Action on behalf of Tunisia Shearin against the Defendants Det. David Centeno and Sgt. Michael Falk, in the amount of TEN MILLION (\$10,000,000.00) DOLLARS;

VII. Judgment on the First Cause of Action on behalf of Tunisia Shearin against the City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

VIII. Judgment on the Second Cause of Action on behalf of Tunisia Shearin against the City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

IX. Judgment on the Third Cause of Action on behalf of Tunisia Shearin against the City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

X. Punitive Damages on behalf of the plaintiff Yasin Shearin against the Defendants Det. David Centeno and Sgt. Michael Falk in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

XI. Punitive Damages on behalf of Tunisia Shearin against the Defendants Det. David Centeno and Sgt. Michael Falk an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

XII. Together with the costs and disbursements of this action and for such other and further relief as to this Court seems just and proper.

DATED: May 26, 2016
Flushing, New York

Yours, etc.,



ANDREW F. PLASSE & ASSOCIATES LLC
Attorney for the Plaintiff
Office and P.O. Address
163-07 Depot Road, Suite 205
Flushing, NY 11358
(212) 695-5811

VERIFICATION

STATE OF NEW YORK)
COUNTY OF QUEENS) ss.:

I, the undersigned, an attorney duly admitted to practice law in the State of New York, state that I am attorney of record for Tunisia Shearin individually and as parent and Natural Guardian of Yasin Shearin, an infant, the plaintiff in the within action; I have read the foregoing COMPLAINT and I know the contents thereof; the same is true as to my own knowledge, except as to those matters stated to be alleged upon information and belief, and as to those matters, I believe it to be true; the reason why this verification is made by me and not by Tunisia Shearin, is because she resides outside of the County of Queens, and is outside the principal location of my office which is located in Queens County.

The grounds of my belief as to those matters not stated upon my own knowledge are as follows: Review of his file maintained by my office in the ordinary course of business.

DATED: May 26, 2016
 Flushing, New York



ANDREW F. PLASSE